

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK-----X
ROBERT MADISON and
RUSSELL FROST,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK
CITY POLICE DEPARTMENT, DETECTIVE
FAISAL KAHN, DETECTIVE ERIC SANCHEZ,
WILLIE WALKER and POLICE OFFICER
"JOHN DOE", name being fictitious and
unknown,Defendants.
-----X

To the above named Defendant(s)

You are hereby summoned to answer the verified complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: March 7, 2014

The City of New York
New York City Police Department
100 Church Street
New York, New York 10007Detective Faisal Kahn
Detective Eric Sanchez
Police Officer "John Doe"
c/o The City of New York
100 Church Street
New York, NY 10007Willie Walker
163 West 125th Street
New York, NY 10027

Index No.:

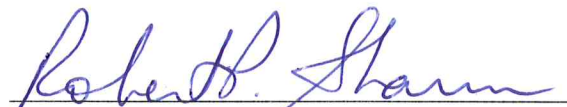
Date Purchased:

Plaintiffs designate New York
County as the place of trial:The basis of venue is the
Plaintiffs' residence**SUMMONS**

Plaintiffs reside at:

147 West 126th Street
Apt. 1
New York, NY 10027
County of New York

ROBERT P. SHARRON & ASSOCIATES, P.C.



By: Robert P. Sharron, Esq.

Attorney for Plaintiffs

Robert Madison and Russell Frost
26 Broadway, Suite 901
New York, New York 10004
(212) 227-5550

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
ROBERT MADISON and
RUSSELL FROST

Plaintiffs,

Index No:

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK, THE NEW YORK
CITY POLICE DEPARTMENT, DETECTIVE
FAISAL KAHN, DETECTIVE ERIC SANCHEZ,
WILLIE WALKER and POLICE OFFICER
“JOHN DOE”, name being fictitious and
unknown,

Defendants.

-----X

Plaintiffs ROBERT MADISON and RUSSELL FROST by their attorneys, Robert
P. Sharron, & Associates, P.C., complaining of the defendants, allege as follows:

AS AND FOR ALL CAUSES OF ACTION:

1. That at all times hereinafter mentioned, the plaintiff's ROBERT
MADISON and RUSSELL FROST were and still are residents of the City and State of
New York, County of New York.

2. That at all times hereinafter mentioned, the defendant THE CITY OF
NEW YORK (hereinafter "CITY"), is a municipal corporation, duly formed and existing
by virtue of the laws of the State of New York.

3. That at all times hereinafter mentioned, the defendant THE CITY OF
NEW YORK POLICE DEPARTMENT, (hereinafter "POLICE") is an agency of the
defendant CITY.

4. That at all times hereinafter mentioned, upon information and belief, the defendant DETECTIVE FAISAL KAHN (hereinafter "KAHN"), was and still is employed by the defendant CITY as a Detective with the defendant POLICE.

5. That at all times hereinafter mentioned, upon information and belief, the defendant DETECTIVE ERIC SANCHEZ (hereinafter "SANCHEZ"), was and still is employed by the defendant CITY as a Detective with the defendant POLICE.

6. That at all times hereinafter mentioned, upon information and belief, the defendant POLICE OFFICER "JOHN DOE" name being fictitious and unknown (hereinafter "DOE"), was and still is employed by the defendant CITY as a Police Officer with the defendant POLICE.

7. That at all times hereinafter mentioned, upon information and belief, the defendant WILLIE WALKER (hereinafter "WALKER"), was and still is a resident of the City and State of New York, County of New York.

8. That at all times hereinafter mentioned, upon information and belief, on or about November 29, 2012, the defendant KAHN, was acting in the scope of his employment with the defendant CITY as a Detective of the defendant POLICE and at said defendants' instruction, direction and supervision.

9. That at all times hereinafter mentioned, upon information and belief, on or about November 29, 2012, the defendant SANCHEZ, was acting in the scope of his employment with the defendant CITY as a Detective of the defendant POLICE and at said defendants' instruction, direction and supervision.

10. That at all times hereinafter mentioned, upon information and belief, on or about November 29, 2012, the defendant DOE, was acting in the scope of his

employment with the defendant CITY as a Police Officer of the defendant POLICE and at said defendants' instruction, direction and supervision.

11. That on October 31, 2013, all criminal charges were dismissed against the plaintiff ROBERT MADISON, by the Honorable Laura R. Johnson, Criminal Court of the City of New York, County of New York.

12. That on December 9, 2013, a Notice of Claim was filed with the defendant CITY, pursuant to §3 of the General Municipal Law of the State of New York.

13. At least thirty (30) days have elapsed since the service of said Notice of Claim and adjustment or payment thereof has been neglected or refused by the defendant, CITY.

14. That the defendant CITY has not scheduled or notified the plaintiffs to appear for a hearing, pursuant to General Municipal Law, §50-h, within (90) days of filing their Notice of Claim.

15. This action is being commenced within one year and ninety (90) days of the happening of the event on which it is based.

AS AND FOR A FIRST CAUSE OF ACTION:

16. That on or about November 29, 2012 and continuing thereafter until the October 31, 2013, while the plaintiff ROBERT MADISON, was acting as a law abiding citizen, when the defendants CITY, POLICE, KAHN, SANCHEZ and DOE, their agents, servants and/or employees, negligently, carelessly, recklessly, wonton and willfully and

without probable cause or justification, caused the false arrest, imprisonment and confiscation of the lawful property of the plaintiff ROBERT MADISON.

17. That on said date, the defendants CITY, POLICE, KAHN, SANCHEZ and DOE, their agent, servants and/or employees, negligently, carelessly, recklessly, wonton and willfully and without probable cause or justification, caused the false arrest, denial of due process, false imprisonment and confiscation of the lawful property of the plaintiff ROBERT MADISON, and knew or should have known, that the charges made against the plaintiff were false and untrue when made by the defendant WALKER.

18. That the plaintiff ROBERT MADISON, was caused to sustain serious personal injuries to his reputation and standing in the community due to the negligent, careless, reckless, wonton and willful actions of the defendants CITY, POLICE, KAHN, SANCHEZ and DOE, in violation of defendants' POLICE and CITY's rules, regulations and procedures.

19. That on the aforementioned date, the plaintiff ROBERT MADISON, was caused to be falsely detained, arrested, imprisoned and confiscated of his lawful property, by the defendants CITY, POLICE, KAHN, SANCHEZ and DOE, their aagnts, servants and/or employees, without probable cause, fault or provocation by the plaintiff ROBERT MADISON.

20. That this action falls within one or more of the exceptions set forth in CPLR §1602.

21. That as a result of the negligent, careless, reckless, wanton and willful actions of the defendants CITY, POLICE, KAHN, SANCHEZ and DOE, their agents, servants and/or employees, the plaintiff ROBERT MADISON, was caused to suffer

permanent serious personal injuries, was rendered sick, sore and lame, including, but not limited to, intentional infliction of severe emotional distress, humiliation and anguish, as well as injury to plaintiff's reputation and character and violation of his civil rights, all to his damage in a sum that exceeds the jurisdictional limits of all other Courts, which would otherwise have jurisdiction over this action.

AS AND FOR A SECOND CAUSE OF ACTION:

22. That on or about November 29, 2012 and continuing thereafter until October 31, 2013, while the plaintiff ROBERT MADISON, was acting as a law abiding citizen, when the defendants CITY, POLICE, KAHN, SANCHEZ and DOE, their agents, servants and/or employees, negligently, carelessly, recklessly, wonton and willfully and without probable cause or justification, caused the malicious prosecution of the plaintiff ROBERT MADISON.

23. That at said date, the defendants CITY, POLICE, KAHN, SANCHEZ and DOE, their agents, servants and/or employees, negligently, carelessly, recklessly, wonton and willfully and without probable cause or justification, caused the malicious prosecution of the plaintiff ROBERT MADISON, and the defendants knew or should have known, that the criminal charges made and filed against the plaintiff, were false and untrue when made by the defendant WALKER.

24. That the plaintiff ROBERT MADISON, was caused to sustain serious personal injuries to his reputation and standing in the community due to the negligent, careless, reckless, wonton and willful actions of the defendants CITY, POLICE, KAHN,

SANCHEZ and DOE, their agents, servants and/or employees, in violation of defendants' POLICE and CITY's rules, regulations and procedures.

25. That on the aforementioned date, the plaintiff ROBERT MADISON, was caused to be maliciously prosecuted by the defendants CITY, POLICE, KAHN, SANCHEZ and DOE, their agents, servants and/or employees, without probable cause, fault or provocation by the plaintiff ROBERT MADISON.

26. That this action falls within one or more of the exceptions set forth in CPLR §1602.

27. That as a result of the negligent, careless, reckless, wanton and willful actions of the defendants CITY, POLICE, KAHN, SANCHEZ and DOE, their agents, servants, and/or employees, the plaintiff ROBERT MADISON, was caused to suffer permanent serious personal injuries, was rendered sick, sore and lame, including, but not limited to, intentional infliction of severe emotional distress, humiliation and anguish, as well as injury to plaintiff's reputation and character and violation of his civil rights, all to his damage in a sum that exceeds the jurisdictional limits of all other Courts, which would otherwise have jurisdiction over this action.

AS AND FOR A THIRD CAUSE OF ACTION:

28. That on or about November 29, 2012 and continuing thereafter until October 31, 2013, while the plaintiff ROBERT MADISON, was acting as a law abiding citizen, when the defendants CITY, POLICE, KAHN, SANCHEZ and DOE, their agents, servants and/or employees, negligently, carelessly, recklessly, wonton and willfully and

without probable cause or justification, caused the false arrest, denial of due process, imprisonment and confiscation of the lawful property, malicious prosecution and violation of the Civil Rights of the plaintiff ROBERT MADISON.

29. That at said date, the defendants CITY, POLICE, KAHN, SANCHEZ and DOE, their agents, servant and/or employees, negligently, carelessly, recklessly, wonton and willfully and without probable cause or justification, caused the false arrest, denial of due process, false imprisonment and confiscation of the lawful property and malicious prosecution of the plaintiff ROBERT MADISON, and the defendants knew or should have known, that the criminal charges made and filed against the plaintiff, were false and untrue when made by the defendant WALKER.

30. That the plaintiff ROBERT MADISON, was caused to sustain serious personal injuries to his reputation and standing in the community due to the negligent, careless, reckless, wonton and willful actions of the defendants CITY, POLICE, KAHN, SANCHEZ and DOE, their agents, servants and/or employees, in violation of defendants' POLICE and CITY's rules and regulations.

31. That on the aforementioned date, the plaintiff ROBERT MADISON, was caused to be falsely arrested, imprisoned, confiscated of his lawful property and malicious prosecution by the defendants CITY, POLICE, KAHN, SANCHEZ and DOE, their agents, servants and/or employees, without probable cause, fault or provocation by the plaintiff ROBERT MADISON.

32. That this action falls within one or more of the exceptions set forth in CPLR §1602.

33. That as a result of the negligent, careless, reckless, wanton and willful actions of the defendants CITY, POLICE, KAHN, SANCHEZ and DOE, their agents, servants and/or employees, and the plaintiff ROBERT MADISON, was caused to suffer permanent serious personal injuries, was rendered sick, sore and lame, including, but not limited to, intentional infliction of severe emotional distress, humiliation and anguish, as well as injury to plaintiff's reputation and character and violation of his civil rights, all to his damage in a sum that exceeds the jurisdictional limits of all other Courts, which would otherwise have jurisdiction over this action.

AS AND FOR A FOURTH CAUSE OF ACTION:

34. That on or about November 29, 2012 and continuing thereafter until October 31, 2013, while the plaintiff ROBERT MADISON, was acting as a law abiding citizen, when the defendants CITY, POLICE, KAHN, SANCHEZ and DOE, their agents, servants and/or employees, negligently, carelessly, recklessly, wonton and willfully and without probable cause or justification, caused the false arrest, denial of due process, imprisonment and confiscation of the lawful property, malicious prosecution and violation of the Civil Rights of the plaintiff ROBERT MADISON.

35. That at said date, the defendants CITY, POLICE, KAHN, SANCHEZ and DOE, their agents, servants and/or employees, negligently, carelessly, recklessly, wonton and willfully and without probable cause or justification, caused the false arrest, imprisonment and confiscation of the lawful property and malicious prosecution of the plaintiff ROBERT MADISON, and the defendants knew or should have known, that the

criminal charges made and filed against the plaintiff, were false and untrue when made by the defendant WALKER.

36. That the plaintiff ROBERT MADISON, was caused to sustain serious personal injuries to his reputation and standing in the community due to the negligent, careless, reckless, wonton and willful actions of the defendants CITY, POLICE, KAHN, SANCHEZ and DOE, their agents, servants and/or employees, in violation of defendants' POLICE and CITY's rules and regulations.

37. That on the aforementioned date, the plaintiff ROBERT MADISON, was caused to be falsely arrested, imprisoned, confiscated of his lawful property and malicious prosecution by the defendants CITY, POLICE, KAHN, SANCHEZ and DOE, their agents, servants and/or employees, without probable cause, fault or provocation by the plaintiff ROBERT MADISON.

38. That the defendants CITY and POLICE negligently and carelessly trained, hired, supervised, instructed and failed to monitor the New York District Attorney's office and the defendants KAHN, SANCHEZ and DOE, their agent, servants and/or employees, and by so doing, knew or should have known, of the actions of the New York District Attorney and the defendants KAHN, SANCHEZ and DOE, and their agents, servants and/or employees.

39. That this action falls within one or more of the exceptions set forth in CPLR §1602.

40. That as a result of the negligent, careless, reckless, wanton and willful actions of the defendants CITY, POLICE, KAHN, SANCHEZ and DOE, their agents, servants and/or employees, the plaintiff ROBERT MADISON, was caused to suffer

permanent serious personal injuries, was rendered sick, sore and lame, including, but not limited to, intentional infliction of severe emotional distress, humiliation and anguish, as well as injury to plaintiff's reputation and character and violation of his civil rights, all to his damage in a sum that exceeds the jurisdictional limits of all other Courts, which would otherwise have jurisdiction over this action.

AS AND FOR A FIFTH CAUSE OF ACTION:

41. That on or about November 29, 2012 and continuing thereafter until October 31, 2013, while the plaintiff ROBERT MADISON, was acting as a law abiding citizen, when the defendants CITY, POLICE, KAHN, SANCHEZ and DOE, their agents, servants and employees, negligently, carelessly, recklessly, wonton and willfully and without probable cause or justification, caused the false arrest, denial of due process, imprisonment, confiscation of the lawful property, malicious prosecution and violation of the Civil Rights of the plaintiff ROBERT MADISON.

42. That at said date, the defendants CITY, POLICE, KAHN, SANCHEZ and DOE, their agents, servants and/or employees, negligently, carelessly, recklessly, wonton and willfully and without probable cause or justification, caused the false arrest, denial of due process, false imprisonment, confiscation of the lawful property and malicious prosecution of the plaintiff ROBERT MADISON, and the defendants knew or should have known, that the criminal charges made and filed against the plaintiff, were false and untrue when made by the defendant WALKER.

43. That the plaintiff ROBERT MADISON, was caused to serious personal injuries to his reputation and standing in the community due to the negligent, careless, reckless, wonton and willful actions of the defendants CITY, POLICE, KAHN, SANCHEZ and DOE, their agents, servants and/or employees, in violation of defendants' POLICE and CITY's rules and regulations.

44. That on the aforementioned date, the plaintiff ROBERT MADISON, was caused to be falsely arrested, imprisoned, confiscation of the lawful property and malicious prosecution by the defendants CITY, POLICE, KAHN, SANCHEZ and DOE, their agents, servants and/or employees, without probable cause, fault or provocation by the plaintiff ROBERT MADISON. .

45. That as a result of the negligent, careless, reckless, wanton and willful actions of the defendants CITY, POLICE, KAHN, SANCHEZ and DOE, their agents, servants and/or employees, the plaintiff ROBERT MADISON'S Civil Rights, including but not limited to Title 42 U.S.C. §1983 were violated.

46. That this action falls within one or more of the exceptions set forth in CPLR §1602.

47. That as a result of the negligent, careless, reckless, wanton and willful violations of plaintiff's Civil Rights, including but not limited to Title 42 U.S.C. §1983, the defendants CITY, POLICE, KAHN, SANCHEZ and DOE, their agents, servants and/or employees, the plaintiff ROBERT MADISON, was caused to suffer permanent serious personal injuries, was rendered sick, sore and lame, including, but not limited to, intentional infliction of severe emotional distress, humiliation and anguish, as well as

injury to plaintiff's reputation and character and violation of his civil rights, all to his damage in a sum that exceeds the jurisdictional limits of all other Courts, which would otherwise have jurisdiction over this action.

AS AND FOR A SIXTH CAUSE OF ACTION:

48. That on or about November 29, 2012 and continuing thereafter until October 31, 2013, while the plaintiff ROBERT MADISON, was acting as a law abiding citizen, when the defendants CITY, POLICE, KAHN, SANCHEZ and DOE, their agents, servants and/or employees, negligently, carelessly, recklessly, wonton and willfully and without probable cause or justification, caused the false arrest, imprisonment, confiscation of the lawful property, malicious prosecution and abuse of process upon the plaintiff ROBERT MADISON.

49. That at said date, the defendants CITY, POLICE, KAHN, SANCHEZ and DOE, their agents, servants and/or employees, negligently, carelessly, recklessly, wonton and willfully and without probable cause or justification, caused the false arrest, imprisonment, confiscation of the lawful property, malicious prosecution and committed abuse of process upon the plaintiff ROBERT MADISON, and when the defendants knew or should have known, that the criminal charges made and filed against the plaintiff, were false and untrue when made by the defendant WALKER.

50. That the plaintiff ROBERT MADISON, was caused to serious personal injuries to his reputation and standing in the community due to the negligent, careless, reckless, wonton and willful actions of the defendants CITY, POLICE, KAHN,

SANCHEZ and DOE, their agents, servants and/or employees, in violation of defendants' POLICE and CITY's rules and regulations.

51. That on the aforementioned date, the plaintiff ROBERT MADISON, was caused to be falsely arrested, imprisoned, confiscation of the lawful property, maliciously prosecuted and abuse of process by the defendants CITY, POLICE, KAHN, SANCHEZ and DOE, their agents, servants and/or employees, without probable cause, fault or provocation by the plaintiff ROBERT MADISON. .

52. That as a result of the negligent, careless, reckless, wanton and willful actions and abuse of process by the defendants CITY, POLICE, KAHN, SANCHEZ and DOE, their agents, servants and/or employees, the plaintiff ROBERT MADISON'S Civil Rights, including but not limited to Title 42 U.S.C. §1983 were violated.

53. That this action falls within one or more of the exceptions set forth in CPLR §1602.

54. That as a result of the negligent, careless, reckless, wanton and willful violations of plaintiff's Civil Rights, including but not limited to Title 42 U.S.C. §1983, the defendants CITY, POLICE, KAHN, SANCHEZ and DOE, their agents, servants and/or employees, the plaintiff ROBERT MADISON, was caused to suffer permanent serious personal injuries, was rendered sick, sore and lame, including, but not limited to, intentional infliction of severe emotional distress, humiliation and anguish, as well as injury to plaintiff's reputation and character and violation of his civil rights, all to his damage in a sum that exceeds the jurisdictional limits of all other Courts, which would otherwise have jurisdiction over this action.

AS AND FOR A SEVENTH CAUSE OF ACTION:

55. That on or about November 29, 2012 and continuing thereafter until October 31, 2013, while the plaintiff ROBERT MADISON, was acting as a law abiding citizen, when the defendant WALKER negligently, carelessly, recklessly, wonton, willfully and knowingly committed abuse of process, without probable cause or justification, which caused the false arrest, false imprisonment and malicious prosecution of the plaintiff ROBERT MADISON.

56. That at said date, as a result of the defendant WALKER's negligent, careless, reckless, wonton and willful, abuse of process, which caused the false arrest, false imprisonment and malicious prosecution of the plaintiff ROBERT MADISON, and the defendant WALKER knew, that the criminal charges made and filed against the plaintiff, were false and untrue.

57. That the plaintiff ROBERT MADISON, was caused to serious personal injuries to his reputation and standing in the community due to the negligent, careless, reckless, wonton and willful actions of the defendant WALKER.

58. That on the aforementioned date, the plaintiff ROBERT MADISON, was caused to be falsely arrested, imprisoned, maliciously prosecuted based upon the abuse of process committed by the defendant WALKER upon the plaintiff ROBERT MADISON.

59. That as a result of the negligent, careless, reckless, wanton and willful actions and abuse of process by the defendant WALKER, the plaintiff ROBERT

MADISON'S Civil Rights, including but not limited to Title 42 U.S.C. §1983 were caused to be violated by the defendants CITY, POLICE, KAHN, SANCHEZ and DOE.

60. That this action falls within one or more of the exceptions set forth in CPLR §1602.

61. That as a result of the negligent, careless, reckless, wanton and willful actions of the defendant WALKER, the plaintiff ROBERT MADISON was caused to suffer permanent serious personal injuries, was rendered sick, sore and lame, including, but not limited to, intentional infliction of severe emotional distress, humiliation and anguish, as well as injury to plaintiff's reputation and character and violation of his civil rights, all to his damage in a sum that exceeds the jurisdictional limits of all other Courts, which would otherwise have jurisdiction over this action.

AS AND FOR A EIGHTH CAUSE OF ACTION:

62. That at all times herein mentioned, the plaintiff RUSSELL FROST, is the husband of ROBERT MADISON.

63. That on or about November 29, 2012 and continuing thereafter until October 31, 2013, while the plaintiff ROBERT MADISON, was acting as a law abiding citizen, when the defendants CITY, POLICE, KAHN, SANCHEZ, DOE and WALKER, their agents, servants and/or employees, negligently, carelessly, recklessly, wonton and willfully and without probable cause or justification, caused the false arrest, imprisonment, confiscation of the lawful property, malicious prosecution and abuse of

process and/or failure to prevent abuse of process upon the plaintiff ROBERT MADISON.

64. That as a result of the injuries sustained by the plaintiff ROBERT MADISON, the plaintiff RUSSELL FROST was caused to suffer expenses and the loss of society, companionship and consortium of his Husband ROBERT MADISON.

65. That as a result of the negligent, careless, reckless, wanton and willful actions of the defendants CITY, POLICE, KAHN, SANCHEZ, DOE and WALKER, the plaintiff's ROBERT MADISON and RUSSELL FROST were caused to suffer permanent serious personal injuries, were rendered sick, sore and lame, including, but not limited to, intentional infliction of severe emotional distress, humiliation and anguish, as well as injury to plaintiff's reputation and character and violation of their civil rights, all to their damage in a sum that exceeds the jurisdictional limits of all other Courts, which would otherwise have jurisdiction over this action.

WHEREFORE, plaintiffs ROBERT MADISON and RUSSELL FROST, demand judgment against the defendants as follows:

- a. On the First Cause of Action against the defendants THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, DETECTIVE FAISAL KAHN, DETECTIVE ERIC SANCHEZ, POLICE OFFICER "JOHN DOE", in an amount that exceeds the jurisdictional limits of all lower courts, that would otherwise have jurisdiction over this matter.
- b. On the Second Cause of Action against the defendants THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, DETECTIVE FAISAL KAHN, DETECTIVE ERIC SANCHEZ, POLICE OFFICER "JOHN DOE", in an amount that exceeds the jurisdictional limits of all lower courts, that would otherwise have jurisdiction over this matter.
- c. On the Third Cause of Action against the defendants THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, DETECTIVE FAISAL KAHN, DETECTIVE ERIC SANCHEZ, POLICE OFFICER

“JOHN DOE”, in an amount that exceeds the jurisdictional limits of all lower courts, that would otherwise have jurisdiction over this matter.

- d. On the Fourth Cause of Action against the defendants THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, DETECTIVE FAISAL KAHN, DETECTIVE ERIC SANCHEZ, POLICE OFFICER “JOHN DOE”, in an amount that exceeds the jurisdictional limits of all lower courts, that would otherwise have jurisdiction over this matter.
- e. On the Fifth Cause of Action against the defendants THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, DETECTIVE FAISAL KAHN, DETECTIVE ERIC SANCHEZ, POLICE OFFICER “JOHN DOE”, in an amount that exceeds the jurisdictional limits of all lower courts, that would otherwise have jurisdiction over this matter.
- f. On the Sixth Cause of Action against the defendants THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, DETECTIVE FAISAL KAHN, DETECTIVE ERIC SANCHEZ, POLICE OFFICER “JOHN DOE”, in an amount that exceeds the jurisdictional limits of all lower courts, that would otherwise have jurisdiction over this matter.
- g. On the Seventh Cause of Action against the defendant WILLIE WALKER in an amount that exceeds the monetary limits of all lower courts, that would otherwise have jurisdiction over this matter.
- h. On the Eighth Cause of Action against the defendants THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, DETECTIVE FAISAL KAHN, DETECTIVE ERIC SANCHEZ, POLICE OFFICER “JOHN DOE” and WILLIE WALKER, in an amount that exceeds the monetary limits of all lower courts, that would otherwise have jurisdiction over this matter.

Dated: New York, New York
March 7, 2014

ROBERT P. SHARRON & ASSOCIATES, P.C.


By: Robert P. Sharron, Esq.

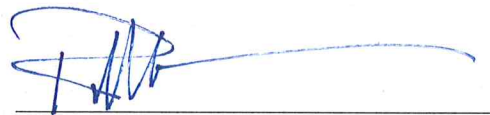
Attorneys for Plaintiffs
Robert Madison and Russell Frost
26 Broadway, Suite 901
New York, New York 10004
(212) 227-5550

VERIFICATION

STATE OF NEW YORK)
) ss:
COUNTY OF NEW YORK)

Robert Madison and Russell Frost, being duly sworn, deposes and says:

We are the Plaintiffs in the within action. We have read the foregoing Complaint and know the contents thereof; the same is true to our own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters, we believe it to be true.

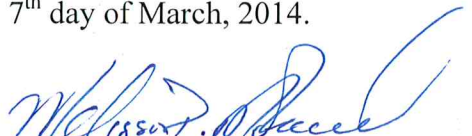


ROBERT MADISON



RUSSELL FROST

Sworn to before me this
7th day of March, 2014.


Notary Public

MELISSA D. MOHAMMED
Notary Public, State of New York
No. 01MO6281133
Qualified in Kings County
Commission Expires May 13, 2017

INDEX NO.:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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ROBERT MADISON and
RUSSELL FROST

Plaintiffs,

-against-

THE CITY OF NEW YORK, THE NEW YORK
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fictitious and unknown and WILLIE WALKER,

Defendants.

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SUMMONS & VERIFIED COMPLAINT
-----X

ROBERT P. SHARRON & ASSOCIATES, P.C.
Attorneys for Plaintiff
Office & P.O. Address
26 Broadway, Suite 901
New York, New York 10004
(212) 227-5550

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: Signature.....
Print Signer's Name: Robert P. Sharron, Esq.

Service of a copy of the within is hereby admitted.
Dated:
Attorney(s) for

PLEASE TAKE NOTICE

[] that the within is a (certified) true copy of a entered in the office of the
NOTICE OF clerk within named
ENTRY Court on ,201 .
[] that an Order if which the within is a true copy will presented for settlement
NOTICE OF to the Hon. at one of the judges within named Court, on 201 , at
SETTLEMENT

Dated: ROBERT P. SHARRON & ASSOCIATES, P.C.
26 Broadway, Suite 901
New York, New York 10005

To:
Attorney(s) for